

		be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The court also noted that plaintiff stated that plaintiff's enhancement payment is in part in exchange for "provid[ing] a general release of claims and a waiver of rights under California Civil Code Section 1542 to Defendant as part of the settlement." Poudel Decl. (ROA 96) ¶ 21; see <i>also</i> Brief (ROA 100) § VIII. The court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general, and that the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. Plaintiff has not identified any unique circumstances warranting the higher amount plaintiff seeks. Plaintiff's counsel states that the enhancement award plaintiff seeks "is not consideration in exchange for [plaintiff's] release of individual claims, but rather to compensate plaintiff for time and effort plaintiff expended on behalf of the Class Members, and for the risks in being the named plaintiff in a class against his former employer." Supp. Chang Decl. ¶ 23. The former portion of plaintiff's counsel's statement contradicts plaintiff's declaration. The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable for this case. 7. In the January 22, 2026 order, the court stated that defendants should advise, in a declaration filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action (other than Case No. 2022-01284924, of which the court is aware). If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. This has not been done. 8. In the January 22, 2026 order, the court stated that all parties and counsel must disclose any relationship(s) with the proposed cy pres recipient. Plaintiff, defendants and defendants' counsel have not done this. <u>As to the proposed order (ROA 119, 121):</u> 9. In the January 22, 2026 order, the court stated that the settlement agreement and any amendments thereto and the
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		class notice packet (in all languages) should be attached to the proposed order as exhibits. Neither the settlement agreement nor the amendment thereto is attached to the proposed order as an exhibit. 10. In the January 22, 2026 order, the court stated that paragraph 28 should state that the motion for final approval must be filed and served at least 16 court days before the final approval hearing. This has not been done. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>a/so</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
16	Poudel v. Mobilenet Services, Inc., et al. 2022-01284924	<u>Status Conference in Case No. 2022-01284924</u> Plaintiff's counsel states that plaintiff will file a request for dismissal of this action before May 14, 2026. Supp. Chang Decl. (ROA 118 in Case No. 2022-01276271) ¶ 3. The May 14, 2026 status conference is vacated. An Order to Show Cause re Dismissal is scheduled for <u>October 1, 2026 at 2:00 p.m.</u> in Department CX105. Plaintiff is ordered to appear. Failure to appear will result in dismissal of the entire action. Clerk to give notice.
17	Uroza v. Niki Investments, Inc. T/A Domino's Pizza, et al. 2025-01523955	Off calendar.